

23AHCV02465 23AHCV02465

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-07-10

Motion: MOTION TO SUBSTITUTE COUNTY OF LOS ANGELES AS SOLE DEFENDANT IN PLACE OF NINOSKA BONNIE FRANZLE OR, IN THE ALTERNATIVE, FOR JUDGMENT ON THE PLEADINGS

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Case Number: 23AHCV02465 Hearing Date: July 10, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

SACHIKO
ARJONA,

Plaintiff(s),

vs.

NINOSKA
BONNIE FRANZLE, et al.,

Defendant(s).

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CASE NO.: 23AHCV02465

[TENTATIVE]

ORDER RE: MOTION TO SUBSTITUTE COUNTY OF LOS ANGELES AS SOLE DEFENDANT
IN PLACE OF NINOSKA BONNIE FRANZLE OR, IN THE ALTERNATIVE, FOR JUDGMENT ON
THE PLEADINGS

Dept.

3

8:30

a.m.

July 10,

2026

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I.

INTRODUCTION

On October 24, 2023, plaintiff Sachiko

Arjona ("Plaintiff") filed this action against defendants Ninoska Bonnie Franzle ("Franzle") and the County of Los Angeles ("COLA") for governmental tort liability and negligence. Plaintiff alleges that on January 19, 2023, Franzle made an unsafe left turn and crashed into Plaintiff's Vehicle; at the time, Franzle was employed by COLA and was working within the course and scope of her employment. (Compl., ¶ 9.)

On December 11, 2023, Franzle and COLA filed an answer.

On May 27, 2026, Franzle and COLA filed this motion to substitute COLA as the sole defendant in place of Franzle or, in the alternative, enter judgment on the pleadings in favor of Franzle.

Plaintiff filed an opposition brief on June 26, 2026.

No reply brief is on file.

II.

DISCUSSION

COLA argues that it should be substituted for Franzle because it is the proper party in interest and Franzle is merely a "nominal defendant." COLA first relies on Code of Civil Procedure section 367, which provides that "Every action must be prosecuted in the name of the real party in interest, except as otherwise provided by statute." This statute is inapplicable because Plaintiff is prosecuting this action, not COLA. Therefore, COLA's request to be substituted as the real party in interest on this ground is DENIED.

As for whether judgment on the pleadings should be granted, COLA argues that it is the true party in interest because it is required to defend and indemnify Franzle per Government Code § 995. COLA offers no authority supporting its contention that Franzle is merely a "nominal" defendant and not also a proper or real party in interest. COLA cites to *Meester v. Davies* (1970) 11 Cal.App.3d 342, 348, which is inapplicable because the holding concerned compliance with the Tort Claims Act, not whether a public employee could be dismissed from an action simply because the public entity employer has been named. The statutes cited by Defendant also

do not provide a basis for granting judgment in Franzle's favor at this stage. The statutes cited, Government Code sections 825 and 825.5, concern a duty to defend and satisfy any judgments, but again, none transform the employee into a mere "nominal defendant" or unnecessary. COLA does not cite any case or statute stating that indemnification provides a basis for dismissing the indemnified party or that Plaintiff is foreclosed from pursuing her claims against Franzle individually. Accordingly, judgment on the pleadings is DENIED.

III.

CONCLUSION

COLA and Franzle's motion is DENIED.

Dated
this 10th
day of July 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.